

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: No tentative ruling, hearing is continued to 7.31.26 to be heard with other two discovery motions.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507919	KAMRAN VS MARRIOTT INTERNATIONAL, INC.	MOTION FOR TRIAL PREFERENCE BY MEHRNOOSH KAMRAN

Tentative Ruling: CCP § 36(a) provides that a party who is over 70 years of age may petition the court for preference, “which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) The purpose of trial preference under Section 36 is “to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.” (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Where a party meets the requisite standard for calendar preference based on the party’s health and status as more than 70 years of age, preference must be granted; the court cannot balance conflicting interests. (*Fox v. Sup. Ct.* (2018) 21 Cal.App.5th 529.) Trial must be set within 120 days even if opposing parties have not completed discovery or pretrial preparations. (*Swaithe v. Sup. Ct. (Hunter)* (1989) 212 Cal.App.3d 1082, 1086.) However, the court still must find that Plaintiff has a substantial interest in the action and his health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) Notably, the requisite showing under § 36(a) may be made through an attorney affidavit “based upon information and belief as to the medical diagnosis and prognosis.” (CCP § 36.5; see also *Fox v. Sup. Ct., supra*. 21 Cal.App.5th at 534 [no doctor’s declaration is required under the standard of subdivision (a)].)

Here, Plaintiff’s counsel, Matthew Novian, submitted a declaration stating Plaintiff is 73-years-old (Dec. Novian ¶ 4), which is undisputed. Mr. Novian asserts that Plaintiff has a substantial interest in the outcome of this action, which is also undisputed. (*Id.* ¶ 5.) He summarizes Plaintiff’s fall and her resulting medical treatment. (*Id.* ¶¶ 6-13.) By 12/22/25, Plaintiff’s orthopedic surgeon noted her right knee was “severely arthritic”, painful, and deteriorating. (*Id.* ¶ 14.) Plaintiff had a total knee replacement surgery on 2/17/26. (*Id.* ¶ 15.) Her right shoulder has also deteriorated from a partial to a complete rotator cuff tear requiring physical therapy. (*Id.* ¶ 16.) Mr. Novian then concludes that due to her age, deteriorating health conditions, and significant injuries, there is a substantial risk that delay in bringing this matter to trial will prejudice Plaintiff’s interests. (*Id.* ¶ 17.)

To the contrary, Marriott’s counsel, Saleem Hawathmeh, declares that there is nothing in Plaintiff’s medical records that suggests she “suffers from any condition that

threatens her survival, her cognition, or her capacity to attend and meaningfully participate in a trial set in the ordinary course.” (Dec. Hawathmeh ¶ 3.)

Based on the medical records, there is no dispute that Plaintiff was injured in the fall. However, Plaintiff’s counsel’s declaration is the only one provided concerning her health condition.

Marriott persuasively argues that Plaintiff has not asserted that she suffers from any health condition that threatens her survival, her cognition, or her capacity to attend/participate in a normally set trial. This is important as it does not appear Plaintiff’s current health condition will adversely affect her ability to participate in the trial. Her injuries were primarily physical. Neither Plaintiff nor her counsel assert that Plaintiff is experiencing a terminal or even chronic illness nor rapid cognitive decline that would support a trial preference. Certainly, Plaintiff’s advanced age could potentially support a motion for trial preference based on CCP § 36(a) along with a finding that Plaintiff has a substantial interest in the action, both of which are conceded by Marriott. However, the Court must further find that her health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) Here, Plaintiff has not established that a preference is necessary to prevent prejudicing her interest. Should Plaintiff obtain evidence to demonstrate a “cognitive decline”, or establish a sufficient basis for a preference, she is not foreclosed from bringing another motion. Additionally, the court does not find that preference should be granted in the interests of justice pursuant to CCP 36(e).

Motion for Trial Setting Preference DENIED.

Case Management Conference and OSC continued to 9.14.26.

Plaintiff’s counsel ordered to file new and updated Case Management Statement 10 days in advance of hearing regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and also address Counsel’s failure to appear at the Case Management Conference on 5.12.26. Do not use Judicial Counsel form CM-110. Failure to comply will result in sanctions.

Defendant not ordered to submit an updated CMC statement at this time.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2600012	PEARCE VS ELLENZ	MOTION TO QUASH SUBPOENA

Tentative Ruling: A subpoena “is a writ or order directed to a person and requiring the person’s attendance at a particular time and place to testify as a witness. It may also require a witness to bring any books, documents, electronically stored information, or other things under the witness’s control which the witness is bound by law to produce in evidence.” (C.C.P. § 1985(a).) `

“[T]he court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate